DRIFTERS ADVENTOURS PTY LTD

Versus

KUDAKWASHE CHINGOMA N.O
(In his capacity as the Messenger of Court)

AND

SAZISO NCUBE

AND

JESCA MAKONYE

IN THE HIGH COURT OF ZIMBABWE
KABASA AND DUBE JJ
BULAWAYO 12 NOVEMBER AND 2 DECEMBER 2025

Civil Appeal

T. Zhuwarara, for the appellant
No appearance for the 1st respondent
2nd and 3rd respondents, In person

KABASA J: This is an appeal against the whole judgment of the Magistrates Court handed down on 4 September 2025 wherein the appellant's claim in interpleader proceedings was dismissed, declaring executable the motor vehicle which was attached by 1st respondent in order to satisfy the judgment granted in favour of the 2nd and 3rd respondents.

The appeal was noted against the following background:-

BACKGROUND

The 2nd and 3rd respondents obtained judgment against an entity called Drifters Adventure Tours (Pvt) Ltd in a labour related matter. A warrant of execution was issued and a Hino truck registration HB62BCGP was attached by the 1st respondent. An entity named Tourvest Holdings (Pty) Ltd laid claim to the truck and interpleader proceedings ensued under VFGL 12/24. Tourvest's claim was dismissed. Tourvest appealed to the High Court without

success. It appealed to the Supreme Court and again the appeal was dismissed. The Supreme Court appeal was dismissed on 24 July 2025.

In August 2025 the appellant laid claim to the truck and fresh interpleader proceedings ensued. The appellant is described as a division of Tourvest. On 4 September 2025 under VFCG 156/25 the appellant's claim was dismissed with the court *a quo* holding that the matter had been decided already and was therefore *res judicata*.

Aggrieved by this decision the appellant seeks its vacation on the following grounds:-

1. The court *a quo* erred in dismissing appellant's claim after making a finding that the appellant had proved its ownership of the truck.

2. The court *a quo* erred in upholding the plea of *res judicata* without applying all the requirements of such plea.

3. The court *a quo* erred in concluding that a division was not distinguishable from the holding company.

4. The court *a quo* erred in upholding the plea of *res judicata* when there was evidence establishing the appellant's separate legal status and propriety interest in the attached vehicle.

These grounds of appeal can be reduced to 2 grounds, that is:-

1. Whether the court *a quo* erred in dismissing appellant's claim after finding that it had proved ownership.

2. Whether the court *a quo* erred in upholding the plea of *res judicata*.

We must point out from the outset that where a plea of *res judicata* is upheld, there is no scope in going into the merits of the matter and making factual findings which are at variance with findings already made by the court whose decision forms the basis of the plea of *res judicata*. It is a contradiction and an unfortunate one.

COURT A QUO PROCEEDINGS

The appellant's argument was that it is a division of Tourvest the company whose claim to the property was earlier on dismissed. It therefore enjoyed a separate legal persona and

therefore was coming in its own right to claim the truck. The judgment debtor Drifters Adventure Tours Pvt Ltd was a non-existent entity per communication from an official from the Ministry of Justice. There was therefore no cognisable judgment debtor for execution to proceed. The appellant produced documents to prove ownership. The truck was in possession of the appellant's driver and was in Zimbabwe on a Temporary Import Permit for a temporary purpose. The non-existent judgment debtor is not known to the appellant and so its property cannot be sold in execution to satisfy a debt owed by an entity which is not only non-existent but also unknown to it. The matter is therefore not *res judicata*.

The respondents in turn submitted that the appellant surfaced after Tourvest's claim was dismissed. The judgment debtor, Tourvest and the appellant all use the same logo and the judgment debtor is still operating albeit unlawfully. The company is a foreign company and operates lodges, Zimbabwe being one of the countries where the company operates. The matter was adjudicated on and appeals to the High and Supreme Court were dismissed. It is therefore *res judicata.*

COURT A QUO'S FINDINGS

The court reasoned that a division and a subsidiary are not the same. Whilst a subsidiary enjoys a separate legal persona, a division is merely an operational part of the holding company deriving its identity from the holding company.

The court went on to state that the documents tendered by the appellant point to the fact that the Hino Truck HB62BCGP was purchased by the appellant, a division of Tourvest and the truck belonged to the appellant. The appellant and Tourvest are however one and the same.

Tourvest went through all the 'appellant levels' fighting ownership of the truck but failed. Now its division is claiming the same truck, akin to one coming from the eastern direction and later approaching from the western direction and claim to be a different person. Tourvest and appellant are the same and as Tourvest's claim was finalised, the plea of *res judicata* must succeed.

The plea of *res judicata* was consequently upheld and the court *a quo* concluded as follows: -

> "To that end, I find that this matter brought for adjudication has been finalised by the courts and I have no reason to doubt that the plea of *res judicata* has been rightly pleaded in this case.
>
> Accordingly, the interpleader claim is dismissed …"

Appeal Proceedings

We have articulated the grounds of appeal and also expressed the unfortunate manner in which the court *a quo* dealt with the matter, that is upholding the plea of *res judicata* whilst at the same time delving into the merits of the matter and making its own factual findings, albeit not at variance with the earlier findings as to the identity of the parties.

RES JUDICATA

Counsel for the appellant referred to several cases which cases we will now consider in deciding whether the court *a quo* erred in upholding the plea of *res judicata*.

In *Anjin Investments (Pvt) Ltd* v *Minister of Mines & Ors* 2018 (1) ZLR 692 (CC) the court had this to say:-

> "The principle of *res judicata* precludes the court from re-opening a case that has been litigated to finality … If a cause of action has been finally litigated between the parties, then a subsequent attempt by one to proceed against the other on the same cause for the same relief can be met by an exception *rei judicatae vel litis finitae*."

The plea therefore speaks to the same parties, same cause of action and same subject matter.

It is important to consider the decision against Tourvest and the findings of the court *a quo* and the appeal court(s). The court *a quo* dismissed Tourvest's claim not only because of a registration book that was not authenticated but that it produced a document purporting to show the purchase of the truck by Tourvest which document showed that Drifters Adventures is a division of Tourvest Holdings (Pvt) Ltd "i.e. the judgment debtor is a sub-division of the claimant." The court went on to say:-

> "This document I find that it supports the creditors position who indicate that Drifters Adventures is a division of Tourvest Holdings and Tourvest Holdings is only divorcing itself from the judgment debtor so that they can get the property which they both own released from judicial attachment.
>
> The ZIMRA receipt shows that the judgment debtor is the owner of the truck and not the claimant."

The court further held that the respondents had shown that the judgment debtor and the claimant are one and the same person as the judgment debtor is a subdivision of the claimant. Further the respondents managed to show that the judgment debtor is the owner of the truck since the truck has the judgment debtor's name on it, the ZIMRA receipt shows the judgment debtor as the owner and the registration book was not certified as a true copy of the original.

On appeal, this court stated that the court *a quo* had meticulously gone through the evidence and the factual findings it made could not be interfered with.

Equally the appeal court found that it was common cause that the Hino truck is inscribed on its body the words "Drifters Adventure Tours" it also has the Drifters Adventure Tours logo and is painted in Drifters Adventure Tours colours. The court agreed with the observation by the court *a quo* that the presumption was the truck belonged to the judgment debtor.

We will quote verbatim from the appeal court's judgment as the point made therein is crucial in determining the issue of *res judicata* raised in the current appeal.

> "The explanation given by the appellant was with respect, a hard sale. That explanation raised more questions than answers. For instance, it was difficult to understand how one company domiciled in South Africa would have its name and logo inscribed on a motor vehicle belonging to another company registered in Zimbabwe and claim that there was no relationship at all with that company. … Not only was the judgment debtor's full name inscribed on the motor vehicle, but the appellant's logo was as well. In the business world a logo is a signature of a company. It is its badge. In this case the motor vehicle in question was painted in the judgment debtor's colours as well. A name, logo, colour and certificate of incorporation complete the identity of a company. The explanation given by the appellant was at best improbable and downright false at worst."

The appellate court equally found that the findings by the court *a quo* showed that Drifters Adventours (current appellant) is the same as Drifters Adventure Tours, the judgment debtor. The ZIMRA receipt fortified the judgment creditors' argument that the motor vehicle belonged to the judgment debtor.

The cases which speak to what a claimant must prove in an interpleader and the separate legal entity of a holding company and its subsidiaries must be considered in light of the findings made by the court *a quo* and the appeal court when Tourvest claimed the same vehicle.

We are aware of the principles enunciated in *The Sheriff* v *Senital (Pvt) Ltd* 2018 (2) ZLR 433 (H), *NJZ Resources (HIC) LTD* v *Zinyemba & Ors* 2019 (2) ZLR 82 (S), *Mahlaba* v

Matinginde Holdings (Pvt) Ltd 2018 (1) ZLR 368 (H) *Muzanenhamo* v *Fishtown Investments (Pvt) Ltd & Ors* S 8-17.

In *O'Shea v Chiunda* the plea of res judicata was enunciated as follows:

"*Res judicata* applies where the two actions are between the same parties, or their successors in title, concerning the same subject matter and founded on the same cause of action"

The ownership of this truck was decided on, not only on procedural grounds as argued by counsel for the appellant but, substantively. The issue of the unauthenticated registration book was but one of the issues both the court *a quo* and the appeal court adverted to.

The registration book would have been *prima facie* proof of ownership but Tourvest's claim was not dismissed solely on the lack of an authenticated registration book.

Findings were made that the motor vehicle belongs to the judgment debtor.

> "The essence of the degree of defence of *res judicata* is that issues being raised have been previously raised and determined by a court of competent jurisdiction. "(*Maparura* v *Maparura* 1988 (1) ZLR 234 (H), *Mutsahuni & Anor* v *The Minister of Lands, Agriculture, Fisheries Water and Rural Resettlement & Anor* HH 407-21).

In casu the appellant placed the same subject matter, same cause of action before the court *a quo* under VFCG 150/25 expecting the court to make fresh findings over the ownership of the same vehicle.

What the appellant sought to do was address the issues raised in the earlier proceedings for which definitive pronouncements had been made. The judgment debtor is now said to be non-existent and a letter was sourced from the Ministry of Justice to show that the entity is not registered.

The respondents have a judgment in their favour wherein this very judgment debtor was cited as the employer. The amounts ordered against this employer is what the respondents are seeking to recover. That employer who has a judgment against it is what the appellant now seeks to say is non-existent and so not cognisable for property to be sold in execution with that non-existent entity as the judgment debtor.

Findings have already been made of the fact that the judgment debtor owns the motor vehicle in question. This is why we earlier on stated that the court *a quo's* decision to uphold

a plea of *res judicata* and at the same time seek to make findings over a matter for which findings had already been made can be described as unfortunate and probably a failure to comprehend what a plea of *res judicata* entails.

Granted, there was no authority found for the proposition that a division and a holding company are one and the same. But how does this division claim the vehicle initially claimed by the holding company as its own, which claim was dismissed and findings made, *inter alia*, that the appellant and the judgment debtor are one and the same and that the vehicle belongs to the judgment debtor?

We must say we found the appellant's claim and its efforts to circumvent an earlier decision to be disingenuous and an abuse of court process. Litigation is not about ingenuity premised on imagined loopholes as this only leads to disingenuous arguments. This is probably a ploy to mask the fact that the judgment debtor and by extension the appellant is operating without proper registration, a fact which would attract censure from the relevant authorities. We go no further on this issue.

We identified two grounds of appeal but deliberately zeroed in on the ground attacking the court *a quo's* decision to uphold the plea of *res judicata*.

A re-look at issues already decided on is what a plea of *res judicata* seeks to address. It results in courts giving conflicting findings and brings the justice system into disrepute.

Counsel for the appellant, in response to a question posed by the court, as to why Tourvest claimed this vehicle and was so determined to assert such claim that it took the matter on appeal right up to the Supreme Court, if the appellant was the rightful owner, responded that it was a misadventure and legal practitioners are not endowed with infinite wisdom. We feel constrained to say the attempt by the appellant to hoodwink the court is also a misadventure, coming as it does on the backdrop of extant court orders/findings that the vehicle in contention belongs to the judgment debtor and that appellant and the judgment debtor are one and the same.

This case may justify the institution of investigations into the operations of Drifters Adventure Tours which has been shown to be operating without proper registration. We do not intend to say more as prior proceedings had Drifters Adventure Tours as an entity,

successfully sued and a warrant of execution successfully issued resulting in the attachment of property determined by both the court *a quo* and appeal court as its property.

The issues of whether a motor vehicle brought into the country on a Temporary Permit can be sold, the peregrinus claim by the appellant and the fact that the motor vehicle was in possession of a South African based driver are all issues meant to have a second bite of the cherry given the findings made in earlier decisions, which findings we have already alluded to.

The positive finding by the court *a quo* regarding ownership of the motor vehicle must be looked at in light of the *res judicata* plea which it upheld. The articulation of the *res judicata* plea and the reasoning thereof may not resonate with this court's but the decision of upholding the plea of *res judicata* was correct and this is what matters. One appeals against the decision not the reasoning thereof.

With that said the appeal has no merit. The judgment of the court *a quo* in dismissing the claim and upholding the plea of *res judicata* cannot be faulted.

Disposition

The appellant sought to have a matter already decided re-heard ostensibly because the earlier claimant was its holding company.

The definitive pronouncements of the court *a quo* and the appeal court as to who owns the vehicle stand and cannot be re-visited.

The plea of *res judicata* was properly upheld.

The appeal is accordingly dismissed, with costs.

Mvhiringi and Associates, appellant's legal practitioners

Kabasa J……..

M. Dube J…….. I agree